

Supreme Court of Nova Scotia
(Family Division)

Between: [complete the heading as required by Rule 82 - Administration of Civil Proceedings]

[full name, including middle name(s)]

Applicant

and

[full name, including middle name(s)]

Respondent

Notice of Variation Application

To: [name of respondent or respondents]

The applicant requests an order or orders be changed

The applicant, [name of party] , is applying to vary or change an order or orders which is permitted by the following: [may delete the one that does not apply]

- ☐ section 17 of the *Divorce Act*;
- ☐ section 37 of the *Parenting and Support Act*.

The changes would affect the following order or orders: [include the title and date of each order]

The changes would affect the following child or children: [may delete if there are no children affected]

Child's Last Name	First & Middle Names	Date of Birth (d/m/y)

The requested changes are as a result of a change in circumstances which are described in the applicant's affidavit provided with this application.

The requested changes concern the following: [check only those that apply]

- ☐ parenting/contact
 - ☐ decision-making responsibility/custody
 - ☐ parenting time [choose one]
 - ☐ primary care (time in excess of 60%)
 - ☐ shared parenting (time between 40-60%)
 - ☐ other
 - ☐ relocation of the child
 - ☐ preventing ☐ authorizing
 - ☐ relocation of a parent
 - ☐ contact time or interaction
 - ☐ grandparent contact time or interaction
 - ☐ other
- ☐ child support:
 - ☐ table amount
 - ☐ special or extraordinary expenses
 - ☐ change in number of dependent children
 - ☐ retroactive variation
 - ☐ termination of child support
 - ☐ administrative recalculation of child support
 - ☐ other [give specifics] _____
- ☐ spousal support
 - ☐ retroactive variation from _____ to _____
 - ☐ termination of spousal support
 - ☐ other [give specifics]
- ☐ arrears of support [give specifics] _____
- ☐ other [give specifics] _____

As part of the variation application, the applicant is applying: [check only those that apply]

- ☐ under section 15 of the *Maintenance Enforcement Act* to address a dispute between the parties about the amount of arrears
- ☐ under section 46(4) of the *Maintenance Enforcement Act* for relief from payment of arrears

The applicant requests that the changes take effect as of (date) _____
and the applicant must present evidence in support of this date.
[may specify for each change if necessary]

The applicant started this variation application by filing this notice on the date certified by the court officer.

Other relevant proceedings and orders

The applicant confirms that: [may delete the one that does not apply]

- ☐ There are, and there were, *no* other proceedings between the parties, or proceedings/ circumstances affecting the well-being or safety of the children/parties.

OR

- ☐ There are, or there were, other proceedings between the parties, or proceedings/circumstances affecting the well-being or safety of the children/parties, details of which are as follows: [complete the sections below for each proceeding]

Type of proceeding(s) & court file number: [describe each, for instance civil, protection, criminal or other proceeding] _____

Order(s) or other measure: [describe, such as an order to protect a person's safety, recognizance or undertaking, peace bond, condition, etc.] _____

Circumstance(s): [describe] _____

Documents in support of application

The applicant files the following documents in support of the application:

- ☐ parenting statement

- ☐ statement of contact time and interaction
- ☐ statement of income
- ☐ statement of special or extraordinary expenses
- ☐ statement of undue hardship circumstances
- ☐ statement of expenses
- ☐ statement of property
- ☐ pre-hearing brief
- ☐ affidavit of [name of applicant] ,
which includes evidence establishing change in circumstances and
evidence supporting the effective date
- ☐ other affidavits and documents [give specifics] _____

- ☐ certified copy of each order that the applicant seeks to vary

A copy of each document is to be delivered to you with this notice.

Response to variation application

To respond to the variation application, or to make your own variation application, you or your counsel may file a response to variation application. A judge or court officer will direct you regarding the deadline for filing a response to variation application.

Required to file documents

There are requirements in the *Nova Scotia Civil Procedure Rules* for parties to file documents and these requirements depend on the type of relief sought. A judge or court officer may direct you to file documents and provide information by a specific date in response to this application.

Possible order against you

A judge may grant a final order on the variation application without further notice to you if you fail to appear at the court when directed or fail to file documents as directed.

Filing and delivering documents

Any documents you file with the court must be filed at the courthouse at [Street/Avenue], , Nova Scotia (telephone #).

The *Nova Scotia Civil Procedure Rules* require that whenever you file a document you must immediately deliver a copy of it to the applicant, or respondent, and to each other party entitled to notice, unless the document is part of an *ex parte* motion, the parties agree delivery is not required, or a judge or a court officer directs it is not required.

Designated address for service

The applicant designates the following address for delivery of documents:

Documents delivered to this address will be considered to be received by the applicant on delivery.

Signature & certificate of applicant

By signing below, I confirm that this is my application and certify that I am aware of my duties, including:

1. I must exercise any decision-making responsibility or parenting time allotted to me, or contact time under a contact order, in a manner that is consistent with the best interests of the child/children;
2. To the best of my ability, I must protect the child/children from conflict arising from this proceeding;
3. To the extent that it is appropriate to do so, I must try to resolve the issues in this proceeding through a family dispute resolution process;
4. I must provide complete, accurate and up-to-date information as required under law, as part of this proceeding and under a Court Order; and,
5. If I am subject to an order, I must follow and comply with the order until it is no longer in effect.

Signed _____, 20____

Signature of applicant
Print name:

[complete additional signature if more than one applicant]

Signed on _____, 20__

Signature of applicant
Name: _____

Counsel's certificate [delete if not represented by counsel]

I, counsel for the applicant, certify that I have complied with the requirements of section 7.7 of the *Divorce Act*/section 54C(2) of the *Parenting and Support Act*.

Signature of counsel

Court officer's certificate

I certify that this notice of variation application was filed with the court on _____, 20__.

Court Officer

For delivery with supporting documents to each respondent:
[full name and address of each]